

H C J D A 38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT,
LAHORE
JUDICIAL DEPARTMENT
Criminal Revision No. 65318 of 2025,
(Shaukat Ali Versus The State, etc.)
J U D G M E N T

Date of hearing.	26.01.2026.
Petitioner by:-	Syed Mehmood Hussain Shah, Advocate for the petitioner, Advocates.
Respondent No.3 by:-	M/s Abdul Rehman Ranjha and Zain Abbas Malik, Advocates.
State by:-	Mr. Hammad Iftikhar Syed, Deputy District Public Prosecutor.

TANVEER AHMAD SHEIKH, J.:- Through this Crl. Revision Petition under Section 435 & 439 of the Code of Criminal Procedure, 1898 (Cr.P.C.), the petitioner has voiced against the order dated 30.10.2025, passed by the learned Addl. Sessions Judge, Lahore, whereby an application to supply copies of certain documents as required under Section 265-C of Cr.P.C., filed by petitioner/accused was dismissed.

2. Brief facts necessary for the disposal of instant Crl. Revision are that respondent No.3 (Mst. Surriya Begum) instituted a private complaint under Section 3, 4, 5 and 7 of the Illegal Dispossession Act, 2005 against the petitioner and others with the allegation that the petitioner ousted the respondent No.3 and his family from the disputed house in February, 2024 and illegally occupied the same and also evicted the tenants and rented out the property to new tenants. After recording cursory evidence and other codal formalities, the petitioner and others

were summoned to face the trial. Formal charge was framed against the petitioner and his co-accused by the learned trial Court, vide memo dated 21.10.2025. After framing of the charge, the petitioner moved an application for the provision of copies of certain documents as required under Section 265-C of Cr.P.C. Notice of the said application was given to respondent No.3. The learned trial Court, after hearing the arguments of the learned counsel for the parties, dismissed the aforesaid application of the petitioner, vide impugned order dated 30.10.2025, hence this CrI. Revision.

3. The petitioner-accused has sought the provision of following documents:-

- i. *Copies of the statements of the persons and their recording/footage mentioned in police report.*
- ii. *Marked documents produced by complainant during cursory statements i.e. Mark-PA to Mark-PC, list of witnesses, complete police report and other documents/material forming the part of record.*

4. It was argued by the learned counsel for the petitioner that learned trial Court failed to appreciate that the copies provided to the petitioner were incomplete and did not include several material documents forming part of the record; that the impugned order was illegal, arbitrary and against the settled principles of criminal justice, as the right to obtain complete copies of the record under Section 265-C of Cr.P.C cannot be taken away.

5. Conversely, the learned Law Officer assisted by the learned counsel for respondent No.3 (complainant) opposed the present petition rigorously on multiple grounds. They added that the petitioner/accused has made an attempt to prolong the proceedings before the learned trial Court in order to achieve some sinister motive, as such present petition merits dismissal straightaway.

6. Arguments heard. File perused.

7. Provision of Section 265-C of Cr.P.C. make it obligatory on the part of the prosecution to supply to the accused, free of cost, the certain documents before commencement of trial. According to Section 265-C (2)(b) of Cr.P.C., where a case is instituted upon a complaint, the copies of complaint, and any other documents, which the complainant has filed herewith and the statements under Section 200 or Section 202 Cr.P.C shall be supplied free of cost to the accused not later than seven days before the commencement of trial.

The words **“any other document which the complainant has filed herewith”** used in the said provision are of much significance. There are to be construed as liberally as possible in favour of the accused and as strict as possible against the prosecution / complainant. It shall cover all sort of documents, which has been appended by the complainant with his complaint or produced while recording his cursory evidence. Purpose of Section 265-C of Cr.P.C. is only to enable the accused to cross-examine the witnesses effectively knowing all the facts and circumstances under which the witnesses made their statements before the police or during the cursory evidence. The documents demanded by the petitioner/accused are of the nature that supply of the same may help the petitioner/accused to build up his defence. He is unable to defend himself without using the same during the cross-examination of witnesses of complainant party, as such I am of the view that application moved by the petitioner/accused before the learned trial Court was well within the domain of law and it was fully covered by Section 265-C of Cr.P.C. Said documents had to be supplied to the petitioner/accused prior to the commencement of trial, which was legal pre-requisite for the safe administration of criminal justice. The intent of the legislature was to provide an opportunity to the accused to defend himself. Said aspect has been further broadened and had attained

constitutional right after advent of article 10-A of the Constitution of Islamic Republic of Pakistan, 1973.

Entitlement of the accused to be supplied with the copies of documents is his valuable right and not a privilege. The provisions of Section 265-C of Cr.P.C being mandatory, its not compliance is not curable under Section 537 of Cr.P.C. In the absence of compliance of said provision, the trial is not proceedable any further.

8. For the reasons recorded above, I feel no hesitation in observing that impugned order dated 30.10.2025, passed by the learned trial Court was not within the four corners of law. I therefore, accept the present petition, setting-aside the impugned order. The learned trial Court is directed to supply copies of documents / material demanded by the petitioner.

(Tanveer Ahmad Sheikh)
Judge

APPROVED FOR REPORTING.

Judge